

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3096

By: Jenkins

AS INTRODUCED

An Act relating to crime victim's rights; allowing crime victims to request review of proposed plea agreements; directing district attorneys to provide certain notice to victims; prohibiting acceptance of proposed plea agreements under certain circumstances; providing for submission, review, and determination by district court judges; requiring independent review and acceptance or rejection of proposed plea agreements; constituting reviews by district court judges as final approval or rejection; providing construing provisions; deeming certain conduct as ineffective toward the validity of accepted plea agreements; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 142A-15 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. In any felony criminal proceeding in which a proposed plea agreement is presented to a special judge or associate district judge, the victim or representative of the victim, may request

1 review of the proposed plea agreement prior to acceptance by the
2 court.

3 B. Upon the formation of a proposed plea agreement, the
4 district attorney shall, upon request, provide to the victim or
5 representative of the victim reasonable notice of the proposed
6 agreement and the date, time, and place at which the court shall
7 consider acceptance of the plea.

8 C. If the proposed plea agreement is presented to a special
9 judge or associate district judge and the victim or representative
10 of the victim requests a review of the proposed plea agreement
11 pursuant to subsection A of this section, the special judge or
12 associate district judge shall not accept or finalize the plea
13 agreement. The proposed plea agreement shall be submitted to the
14 district court judge of the judicial district for review and
15 determination.

16 D. The district court judge shall independently review the
17 proposed plea agreement and may accept or reject the agreement in
18 the exercise of judicial discretion. The review conducted pursuant
19 to this subsection shall constitute final judicial approval or
20 rejection of the plea agreement.

21 E. Nothing in this section shall be construed to confer party
22 status upon a victim, to impair the prosecutorial discretion of the
23 district attorney, or to create a right to appeal the merits of a
24 plea agreement. This section governs only the judicial authority

1 required for acceptance of a proposed plea agreement upon request by
2 a victim. Nothing in this section shall be construed to limit or
3 impair any right of a victim to assert or enforce rights otherwise
4 provided by law.

5 F. Failure to request review of the proposed plea agreement
6 pursuant to this section shall not affect the validity of a plea
7 agreement otherwise accepted by the court.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 60-2-15524 GRS 12/31/25

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